

MBA
(SEM 2) THEORY EXAMINATION 2018-19
BUSINESS LAW

Time: 3 Hours**Total Marks: 100****Note:** Attempt all Sections. If require any missing data; then choose suitably.**SECTION A**

- 1. Attempt *all* questions in brief. 2 x 10 = 20**
- a. Define Enforceability of an agreement.
 - b. What is a contract of indemnity?
 - c. How can a partner retire from a firm? Explain.
 - d. Write short note on "Liability of a partner by holding out."
 - e. How can a person become a partner of an LLP? Discuss.
 - f. How does cheque different from a bill of exchange.
 - g. Explain the term "Unfair Trade Practice".
 - h. What do you understand by compensation?
 - i. Define Penalties.
 - j. Write short note on passing of property.

SECTION B

- 2. Attempt any *three* of the following: 10x3=30**
- a. "An agreement enforceable by law is a contract." Discuss the definitions and bring out clearly the essentials of a valid cotntract.
 - b. "Property of the firm shall be held and used by the partner exclusively for the purposes of the business." Comment with legal position.
 - c. Explain the distinguish features of Promissory notes, Bill of exchange and Cheques.
 - d. Define company. Explain fully the characteristics of a company and kinds of Company on the basis of liability of members.
 - e. Enumerate the activities relating to Acknowledgement and Dispatch of Electronic records.

SECTION C

- 3. Attempt any *one* part of the following: 10x1 = 10**
- a. Define Pledge and distinguish between pledge and bailment. When will a pledge made by a non-owner of the goods be valid?
 - b. What do you understand by performance of a contract? State who can demand performance and by whom contracts must be performed?
- 4. Attempt any *one* part of the following: 10x1=10**
- a. State the rules in regard to the passing of property from a seller to a buyer in a contract for the sale of goods.
 - b. State the Rights and duties of partner for the acts of the firm and for wrongful act of a partner.

- 5. Attempt any *one* part of the following: 10x1 = 10**
- a. What is winding up? Explain briefly the various mode of winding up.
 - b. What is meant by 'designated partners'? Discuss the provisions of LLP Act 2008 regarding appointment and eligibility conditions for the appointment of designated partners.
- 6. Attempt any *one* part of the following: 10x1 = 10**
- a. "A holder in due course gets a title free from equities. Explain the statement and discuss the various privileges of a holder in due course.
 - b. State the provisions of the consumer protection Act, 1986 relating to the power of the consumer forums.
- 7. Attempt any *one* part of the following: 10x1 = 10**
- a. What are the objectives of Cyber Laws under the Information Technology Act, 2000?
 - b. Explain the penalties and jurisdiction of courts under the Right to information Act, 2005.